

| #   | Case Name                                                        | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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| 50. | Aslan v. Orange County Digestive Care, Inc.<br><br>2021-01229801 | <p>Defendants Duke Nguyen, M.D. and Orange County Digestive Care, Inc.'s motion for summary judgment, or in the alternative, summary adjudication as to the claims of plaintiff Hunkar Aslan is GRANTED in its entirety. (Code Civ. Proc., § 437c [authorizing motion].)</p> <p>A defendant seeking summary judgment bears the burden of persuasion and burden of proof by a preponderance of the evidence to negate the plaintiff's claim. It may do this by demonstrating the claim has no merit, that plaintiff cannot prove an element of the claim, or that it has a complete defense entitling it to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 (<i>Aguilar</i>).)</p> <p>If the defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, however, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar, supra</i>, 25 Cal.4th at pp. 850-851.)</p> <p>The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (<i>Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260.)</p> <p>A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.)</p> |

The elements to a claim for medical negligence are (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise, (2) a breach of the duty, (3) a proximate causal connection between the negligent conduct and the injury, and (4) resulting loss or damage. (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 (*Johnson*).)

"Because the standard of care in a medical malpractice case is a matter 'peculiarly within the knowledge of experts' [citation], expert testimony is required to 'prove or disprove that the defendant performed in accordance with the standard of care' unless the negligence is obvious to a layperson. [*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523.]" (*Johnson, supra*, 143 Cal.App.4th at p. 305.)

Expert testimony is also required to demonstrate causation to a reasonable medical probability. (*Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402 (*Jones*); accord, *Chakalis v. Elevator Solutions, Inc.* (2012) 205 Cal.App.4th 1557, 1572.) "Mere possibility alone is insufficient to establish a prima facie case. [Citations.] That there is a distinction between a reasonable medical 'probability' and a medical 'possibility' needs little discussion. There can be many possible 'causes,' indeed, an infinite number of circumstances which can produce an injury or disease. A possible cause only becomes 'probable' when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action." (*Jones*, at pp. 402-403.)

Defendants have met their initial burden showing they have a complete defense to plaintiff's claims via the expert testimony of Lynn Shapiro Connolly, M.D (exhibit L) and declaration of Michael Van Scoy-Mosher (Exhibit M). These experts opine defendants did not breach the standard of care in the industry and was not the proximate cause of plaintiff's injuries. See

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|     |                                                        | <p><i>Exhibits L and M attached to the moving papers. (ROA 116)</i></p> <p>As plaintiff has not filed an opposition to this motion, plaintiff has not met his now shifted burden raising a triable issue of fact as to the standard of care and causation issues.</p> <p>Therefore, summary judgment is GRANTED in favor of moving defendants.</p> <p>The court sets the matter for a status conference on October 27, 2023 at 9:00 a.m. in C-28 to discuss plaintiff's complaint as it relates to Does 1-50. Should plaintiff fail to appear, the court shall dismiss the complaint.</p> <p>Moving defendants shall give notice.</p>                                                                                                                                                                                                                                        |
| 51. | <p>Route Four LLC v. Burkhart</p> <p>2020-01129185</p> | <p>Defendants Luxx Lighting, Inc.'s and Athena Products, Inc.'s Motion For Summary Judgment and/or Summary Adjudication is DENIED. (See Code Civ. Proc. § 437c.)</p> <p>Defendant met its initial evidentiary burden as to Noticed Issue No. 1 (related to the 7<sup>th</sup> and 8<sup>th</sup> causes of action ("COA") intentional interference with contract). The burden then shifts to the plaintiff.</p> <p>Plaintiff met its shifted evidentiary burden to show the existence of one or more triable issues of material fact as to Noticed Issue No. 1. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 851 [burden].)</p> <p>A triable issue of material fact exists as to undisputed material fact ("UMF") 25 as to whether Falcon purchased lights from Luxx in 2019. This triable issue</p> |